

Amendment No. 1 to HB1450

Farmer
Signature of Sponsor

AMEND Senate Bill No. 1708

House Bill No. 1450*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Title 40, Chapter 11, Part 1, is amended by adding the following as a new section:

(a) As used in this section:

(1) "Family," when used with reference to a person, includes:

(A) Any person related to such person within the third degree of consanguinity or affinity; or

(B) Any person living in the same household as such person; and

(2) "Legal guardian" means a person having the legal authority to provide for the care, supervision, and control of a minor child as established by law or court order.

(b) An entity, however organized, shall not secure the release of a defendant unless specifically authorized under this chapter.

(c) An entity, other than the defendant, a member of the defendant's family, the defendant's legal guardian, the defendant's employer, or a professional bondsman authorized under § 40-11-124, seeking to secure the release of a defendant must be approved in accordance with § 40-11-123 for each bond the entity seeks to secure.

(d) An entity, other than the defendant, a member of the defendant's family, the defendant's legal guardian, the defendant's employer, or a professional bondsman authorized under § 40-11-124, shall not:

(1) Post security for a single defendant more than one (1) time per calendar year; or

(2) Post security in an amount of more than five thousand dollars (\$5,000) for each defendant per calendar year.

SECTION 2. Tennessee Code Annotated, Section 39-11-715, is amended by deleting "bonding agent" and substituting "proposed surety".

SECTION 3. This act takes effect July 1, 2026, the public welfare requiring it.